THE RAJIV GANDHI NATIONAL AVIATION UNIVERSITY ACT, 2013

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THE RAJIV GANDHI NATIONAL AVIATION UNIVERSITY ACT, 2013

ACT NO. 26 OF 2013

[18*th September*, 2013.]

An Act to establish and incorporate a national aviation University to facilitate and promote aviation studies and research to achieve excellence in areas of aviation management, policy, science and technology, aviation environment, training in governing fields of safety and security regulations on aviation and other related fields to produce quality human resources to cater to the needs of the aviation sector and to provide for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Sixty-fourth Year of the Republic of India as follows:—

1. Short title and commencement.—*(1)* This Act may be called the Rajiv Gandhi National Aviation University Act, 2013.

(2) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint and different dates may be appointed for different provisions of this Act.

2. Definitions.—In this Act, and in all Statutes made hereunder, unless the context otherwise requires,—

(*a*) "Academic Council" means the Academic Council of the University;

(*b*) "academic staff" means such categories of staff as are designated as academic staff by the Ordinances;

(*c*) "Board of Schools" means the Board of Schools of the University;

(*d*) "Campus" means the unit established or constituted by the University for making arrangements for instruction, research, education and training;

(*e*) "Chancellor and Vice-Chancellor" mean, respectively, the Chancellor and Vice-Chancellor of the University;

(*f*) "College" means a college maintained by or admitted to the privileges of the University for imparting education and training in aviation studies or in its associated disciplines;

(*g*) "Court" means the Court of the University;

(*h*) "Dean of School" means an administrative officer in charge of a college, faculty or a Division in a University;

(*i*) "Department" means a Department of Studies and includes a Centre of Studies;

(*j*) "Director General" means the Director General of Civil Aviation;

(*k*) "Distance Education System" means the system of imparting education through any means of communication, such as broadcasting, telecasting, internet, correspondence courses, seminars, contact programmes, e-learning or the combination of such means;

(*l*) "employee" means any person appointed by the University and includes teachers and other staff of the University;

(*m*) "Executive Council" means the Executive Council of the University;

(*n*) "Finance Committee" means the Finance Committee of the University;

1.18th November, 2013, v*ide* notification No. S.O. 3446 (E), dated 18th November, 2013, *see* Gazette of India, Extraordinary, Part II, sec. 3(*ii*).

(o) "Hall" means a unit of residence for the students of the University or of a College or an Institution maintained by the University;

(*p*) "Institution" means an institution, school, college or centre of studies maintained by or admitted to the privileges of the University for imparting education, training and research in aviation studies or in its associated disciplines;

(q) "notification" means a notification published in the Official Gazette;

(*r*) "off-shore Campus" means an institution, college, centres, school or campus of the University established outside the country;

(*s*) "principal" means the head of a college or an institution;

(*t*) "recognised Institution" means an institution admitted to the privileges of the University for imparting education in aviation studies or its associated disciplines;

(*u*) "recognised teachers" means such persons as are recognised by the University for the purpose of imparting instructions in a college or an institution admitted to the privileges of the University;

(*v*) "school" means a School of Studies of the University;

(*w*) "Statutes", "Ordinances" and "Regulations" mean, respectively, the Statutes, the Ordinances and the Regulations of the University made under this Act;

(*x*) "teachers of the University" means Professors, Associate Professors, Assistant Professors, Readers, Senior Lecturers, Lecturers and such other persons as may be appointed or recognised for imparting instruction or conducting research in the University or in any college or institution maintained by the University or for giving guidance to students for any course of study of the University are designated as teachers by the Statutes;

(*y*) "University" means the National Aviation University established under this Act;

(*z*) "University Grants Commission" means the Commission established under section 4 of the University Grants Commission Act, 1956 (3 of 1956).

3. Establishment of University.—(*1*) There shall be established a University by the name of "Rajiv Gandhi National Aviation University".

(*2*) The headquarters of the University shall be at Fursatganj in the District of Raebareli in the State of Uttar Pradesh.

(*3*) The University may establish or maintain campuses and centres at such other places within its jurisdiction as it may deem fit.

(*4*) The first Chancellor, the first Vice-Chancellor, the first members of the Court, the Executive Council, the Academic Council, and all persons who may hereafter become such officers or members, so long as they continue to hold such office or membership, shall constitute the University.

(*5*) The University shall have perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire, hold and dispose of property and to contract, and shall by that name, sue and be sued.

(*6*) The University shall be a teaching, research and affiliating Aviation University.

4. Objects of University.—The objects of the University shall be,—

(*i*) to facilitate and promote aviation studies, teaching, training, research and extension work with focus on emerging areas of studies such as aviation management, aviation regulation and policy, aviation history, aviation science and engineering, aviation law, aviation safety and security, aviation

medicine, search and rescue, transportation of dangerous goods, environmental studies and other related fields, and also to achieve excellence in these and connected fields in emerging areas and such areas as may emerge in future;

(*ii*) to promote advanced knowledge by providing institutional and research facilities in such branches of learning as it may deem fit and to make provisions for integrated courses in management, science and other key and frontier areas of technology and allied disciplines in the educational programmes of the University;

(*iii*) to create an ambience for learning and scholarship in aviation technology;

(*iv*) to take appropriate measures for ensuring and regulating the quality of aviation education programmes in India offered by recognised institutions;

(*v*) to develop academic standards of an international level and undertake other measures as it may deemed fit, to facilitate the development for skilled aviation man power including the licensed category of aviation personnel;

(*vi*) to develop various programmers for airlines, airport, aviation authorities and staff ranging from airline management and marketing, airport management, regulations and aviation law, aviation safety and security or any other programme and train manpower in aviation field;

(*vii*) to take appropriate measures for promoting innovations in teaching-learning process, undertake inter-disciplinary studies and research.

5. Powers of University.—(*1*) The University shall have the following powers, namely:—

(*i*) to provide for instructions in the aviation related natural sciences, social sciences, humanities, engineering, technology and medicine or as the University may, from time to time, determine and to make provision for research and for the advancement and dissemination of knowledge;

(*ii*) to recognise aviation training colleges and institutes and to make provisions for recognising of such colleges and institutions, maintenance of standards and to undertake special studies;

(*iii*) to establish and maintain campuses, departments, laboratories, libraries, museums, centres of research, training and specialised studies;

(*iv*) to establish and maintain hostel, health centres and other related facilities like auditoria, playgrounds, gymnasiums, swimming pools and training facilities;

(*v*) to establish linkages and collaborate with any other college or University, research institution, industry association, professional or any other organisations in India or outside India to conceptualise, design and develop specific programmes on aviation as part of education and research, training programmes and exchange programmes for students, academic staff and others;

(*vi*) to provide for establishment of campuses, colleges and Institutions for serving a group of recognised colleges and to provide for and maintain commoner source centres in such campuses in the form of libraries, laboratories, computer centres and the like centres of learning;

(*vii*) to prepare educational programmes or courses leading to award of Diploma, Degree, Post Graduate Degrees in the field of civil aviation;

(*viii*) to grant, subject to such conditions as the University may determine, degrees including doctoral degrees, diplomas or certificates other than Certificates of Competencies of licensed aviation personnel, which shall continue to be issued by Director General of Civil Aviation, Government of India till the Central Government otherwise decides, and confer degrees and other academic distinctions on the basis of examinations, evaluation or any other method of testing on persons, and to withdraw any such degrees including doctoral degrees, diplomas, certificates, or other academic distinctions for good and sufficient cause;

(*ix*) to confer honorary degrees or other distinctions in the manner prescribed by the Statutes;

(*x*) to organise and to undertake extra-mural studies, training and extension services;

(*xi*) to institute Directorships, Principalships, Professorships, Associate Professorships, Assistant Professorships and other teaching or academic positions, required by the University and to appoint persons to such Principalships, Professorships, Associate Professorships, Assistant Professorships or academic positions;

(*xii*) to provide for the terms and conditions of service of Directors, Principals and teachers and other members of the academic staff appointed by the University;

(*xiii*) to appoint persons working in any other University or organisation as teachers of the University for a specified period;

(*xiv*) to recognise an institution of higher learning for such purposes as the University may determine and to withdraw such recognition;

(*xv*) to organise and conduct refresher courses, workshops, seminars and other programmes for teachers, evaluators and other academic staff;

(*xvi*) to appoint on contract or otherwise visiting Professors, Emeritus Professors, Consultants, Scholars and such other persons who may contribute to the advancement of the objects of the University;

(*xvii*) to create teaching, non-teaching, administrative, ministerial and other posts in the University and to make appointments thereto;

(*xviii*) to co-operate or collaborate or associate with any other University or authority or institution of higher learning within India or located outside the country, in such manner and for such purposes as the University may determine;

(*xix*) to approve appointment of persons for imparting instructions in any institution admitted to the privileges of the University and to withdraw such approval;

(*xx*) to inspect recognised institutions through suitable machinery established for the purpose, and to take measures to ensure that proper standards of instruction, teaching and training are maintained by them, and adequate library, laboratory, hospital, workshop and other academic facilities are provided for;

(*xxi*) to coordinate the work of different colleges and institutions working in the same and similar areas;

(*xxii*) to set up facilities like computer centre, training centre, instrumentation centre, library, simulators or other units for research and instruction as are, in the opinion of the University, necessary for the furtherance of its objects;

(*xxiii*) to set up curriculum development centres for different subjects;

(*xxiv*) to admit to its privileges colleges and institutions, not maintained by the University, and to withdraw all or any of those privileges in accordance with such conditions as may be prescribed by the Statutes;

(*xxv*) to recognise guide, supervise and control Halls not maintained by the University and other accommodation for students, and to withdraw any such recognition;

(*xxvi*) to make provision for research and advisory services and for that purpose, to enter into such arrangements with other institutions or bodies as the University may deem necessary;

(*xxvii*) to determine standards of admission to the University, which may include examination, evaluation or any other method of testing;

(*xxviii*) to institute and award fellowships, scholarships, studentships, assistantships, medals and prizes;

(*xxix*) to demand and receive payment of fees and other charges;

(*xxx*) to supervise the residences of the students of the University and to make arrangements for promoting their health and general welfare;

(*xxxi*) to make such special arrangements in respect of women students as the University may consider desirable;

(*xxxii*) to regulate the conduct of the students of the University;

(*xxxiii*) to control and regulate admission of students for various courses of study in Departments, recognised institutions, schools and centres of studies;

(*xxxiv*) to regulate the work and conduct of the employees of the University;

(*xxxv*) to regulate and enforce discipline among the employees and students of the University and to take such disciplinary measures in this regard as may be deemed necessary;

(*xxxvi*) to make arrangements for promoting the health and general welfare of the employees of the University;

(*xxxvii*) to receive benefactions, donations and gifts from persons and to name after them such chairs, institutions, buildings and the like, the University may determine, whose gift or donation to the University is worth such amount as the University may decide;

(*xxxviii*) to acquire, hold, manage and dispose of any property, movable or immovable, including trust and endowment properties for the purposes of the University;

(*xxxix*) to borrow, with the approval of the Central Government, on the security of the property of the University, money for the purposes of the University;

(*xl*) to assess needs of the students in terms of subjects, fields of specialisation, levels of education and training of technical manpower, both on short and long term basis, and to initiate necessary programmers to meet these needs;

(*xli*) to initiate measures to enlist the co-operation of the industry to provide complementary facilities;

(*xlii*) to provide for instruction through "distance learning" and "open approach" and for mobility of students from the non-formal open learning stream to the formal stream and *vice versa;*

(*xliii*) to establish such campuses, special centres, specialised laboratories or other units for research and instruction as are, in the opinion of the University, necessary for the furtherance of its objective;

(*xliv*) to confer autonomous status on a college or an institution or a Department, as the case may be, in accordance with the Statutes;

(*xlv*) to arrange for the training to upgrade aviation standard of the employees of the industry and institutes and to levy fees for such training as prescribed by the Statutes;

(*xlvi*) to establish off-shore Campus at any place outside the Country as and when it is considered necessary for advancing the aims and objects of the University; and

(*xlvii*) to do all such other acts and things as may be necessary, incidental or conducive to the attainment of all or any of its objects.

(*2*) In exercising its powers referred to in sub-section (*1*), it shall be the endeavour of the University to maintain an international character and highest possible standards of teaching and research.

6. Jurisdiction.—The jurisdiction of the University shall extend to the whole of India.

7. University open to all classes, castes and creed.—The University shall be open to persons of either sex and of whatever caste, creed, race or class, and it shall not be lawful for the University to adopt or impose on any person any test whatsoever of religious belief or profession in order to entitle him to be appointed as a teacher of the University or to hold any other office therein or be admitted as a student in the University or to graduate thereat or to enjoy or exercise any privilege thereof:

Provided that nothing in this section shall be deemed to prevent the University from making special provisions for the employment or promotion of educational interests of women, physically challenged or of persons belonging to the weaker sections of the society and, in particular, of the Scheduled Castes and the Scheduled Tribes:

Provided further that no such special provision shall be made on the ground of domicile.

8. Fund of University.—(*1*) There shall be a University Fund which shall include—

(*a*) any contribution or grant made by the Central Government or an instrumentality of the Central Government;

(*b*) any contribution or grant made by the State Governments;

(*c*) any contribution from aviation companies and aviation industry both Indian and international;

(*d*) any bequests, donations, endowments or other grants made by any private individual or institution;

(*e*) income received by the University from fees and charges; and

(*f*) amounts received from any other source.

(*2*) The said fund shall be utilised for such purposes of the University and in such manner as may be prescribed by the Statutes and the Ordinances.

9. The Visitor.—(*1*) The President of India shall be the Visitor of the University:

Provided that the President may, by order, nominate any person to be the Visitor and such person so nominated shall hold office for such term, not exceeding five years as may be specified in the order and the person so nominated shall exercise the powers and discharge duties of the Visitor.

(*2*) The Visitor may, from time to time, appoint one or more persons to review the work and progress of the University, including colleges and institutions managed by it, and to submit a report thereon; and upon receipt of that report, the Visitor may, after obtaining the views of the Executive Council thereon through the Vice-Chancellor, take such action and issue such directions, as he considers necessary, in respect of any of the matters dealt within the report and the University shall be bound to comply with such directions.

(*3*) The Visitor shall have the right to cause an inspection to be made by such person or persons as he may direct, of the University, its buildings, libraries, laboratories and equipment, and of any college, institution or campus maintained by the University and also of the examinations, instruction and other work conducted or done by the University and to cause an inquiry to be made in like manner in respect of any matter connected with the administration or finances of the University, colleges or institutions.

(*4*) The Visitor shall, in every matter referred to in sub-section (*3*), give notice to the University of his intention to cause an inspection or inquiry to be made—

(*a*) to the University, if such inspection or inquiry is to be made in respect of the University or any college or institution maintained by it, or

(*b*) to the management of the college or institution, if the inspection or inquiry is to be made in respect of the college or institution admitted to the privileges of the University, and the University or

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the management, as the case may be, shall have the right to make such representations to the Visitor, as it may consider necessary.

(*5*) After considering the representations, if any, made by the University or the management, as the case may be, the Visitor may cause to be made such inspection or inquiry as is referred to in sub-section (*3*).

(*6*) Where any inspection or inquiry has been caused to be made by the Visitor, the University shall be entitled to appoint a representative, who shall have the right to be present in person and be heard at such inspection or inquiry.

(*7*) The Visitor may, if the inspection or inquiry is made in respect of the University, college or institution maintained by it, address the Vice-Chancellor with reference to the result of such inspection or inquiry together with such views and advice with regard to the action to be taken thereon, as the Visitor may be pleased to offer, and on receipt of address made by the Visitor, the Vice-Chancellor shall communicate forthwith to the Executive Council the results of the inspection or inquiry, and the views of the Visitor and the advice tendered by him upon the action to be taken thereon.

(*8*) The Visitor may, if the inspection or inquiry is made in respect of any college or institution admitted to the privileges of the University, address the management concerned through the Vice-Chancellor with reference to the result of such inspection or inquiry, his views thereon and such advice as he may be pleased to offer upon the action to be taken thereon.

(*9*) The Executive Council or the management, as the case may be, shall communicate, through the Vice-Chancellor to the Visitor such action, if any, as it proposes to take or has been taken upon the result of such inspection or inquiry.

(*10*) Where, the Executive Council or the management does not, within a reasonable time, take action to the satisfaction of the Visitor, the Visitor may, after considering any explanation furnished or representation made by the Executive Council or the management, issue such directions as he may think fit and the Executive Council shall comply with such directions.

(*11*) Without prejudice to the foregoing provisions of this section, the Visitor may, by order in writing, annul any proceeding of the University which is not in conformity with the Act, the Statutes or the Ordinances:

Provided that before making any such order, the Visitor shall call upon the Registrar to show cause why such an order should not be made, and, if any cause is shown within a reasonable time, he shall consider the same.

(*12*) Notwithstanding anything contained in the foregoing provisions, the Visitor may give any direction to the University after giving an opportunity to the University as the circumstances warrant.

(*13*) The Visitor shall have such other powers as may be prescribed by the Statutes.

10. Officers of University.—The following shall be the officers of the University:—

(*1*) the Chancellor;

(*2*) the Vice-Chancellor;

(*3*) the Deans of Schools;

(*4*) the Registrar;

(*5*) the Finance Officer;

(*6*) the Controller of Examinations; and

(*7*) such other officers as may be declared by the Statutes to be officers of the University.

11. The Chancellor.—(*1*) The Chancellor shall be appointed by the Visitor in such manner as may be prescribed by the Statutes.

(*2*) The Chancellor shall, by virtue of his office, be the head of the University.

(*3*) The Chancellor shall, if present, preside at the Convocations of the University held for conferring degrees.

12. The Vice-Chancellor.—(*1*) The Vice-Chancellor shall be appointed by the Visitor in such manner for such term and on such emoluments and other conditions of service as may be prescribed by the Statutes.

(*2*) The Vice-Chancellor shall be the principal executive and academic officer of the University and shall exercise general supervision and control over the affairs of the University and give effect to the decisions of all the authorities of the University.

(*3*) The Vice-Chancellor may, if he is of opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the University by or under this Act and shall report to such authority the action taken by him on such matter:

Provided that if the authority concerned is of opinion that such action ought not to have been taken, it may refer the matter to the Visitor whose decision thereon shall be final:

Provided further that any person in the service of the University who is aggrieved by the action taken by the Vice-Chancellor under this sub-section shall have the right to appeal against such action to the Executive Council within ninety days from the date on which decision on such action is communicated to him and thereupon the Executive Council may confirm, modify or reverse the action taken by the Vice-Chancellor.

(*4*) The Vice-Chancellor, if he is of the opinion that any decision of any authority of the University is beyond the powers of the authority conferred by the provisions of this Act, the Statutes or the Ordinances or that any decision taken is not in the interest of the University, may ask the authority concerned to review its decision within sixty days of such decision and if the authority refuses to review the decision either in whole or in part or no decision is taken by it within the said period of sixty days, the matter shall be referred to the Visitor whose decision thereon shall be final:

Provided that the decision of the authority concerned shall remain suspended during the period of such decision by the authority or the Visitor, as the case may be, under this sub-section.

(*5*) The Vice-Chancellor may cause an inspection to be made by such person or persons as he may direct, of a College or an Institution not being maintained by the University, its buildings, libraries, laboratories and equipment, and also examinations, teaching and other work conducted or done by the college or the institution and cause an inquiry, to be made in the like manner, in respect of any matter connected with the quality of education and other academic activities of the colleges or the institutions.

(*6*) The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by the Statutes or the Ordinances.

13. The Deans of Schools.—Every Dean of the School shall be appointed in such manner and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

14. The Registrar.—(*1*) The Registrar shall be appointed in such manner and on such terms and conditions of service, as may be prescribed by the Statutes.

(*2*) The Registrar shall have the power to enter into agreements, sign documents and authenticate records on behalf of the University.

(*3*) The Registrar shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

15. The Finance Officer.—The Finance Officer shall be appointed in such manner and on such terms and conditions of service and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

16. The Controller of Examinations.—The Controller of Examinations shall be appointed in such manner and on such terms and conditions of service and shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

17. Other officers.—The manner of appointment, terms and conditions of services and powers and duties of other officers of the University shall be prescribed by the Statutes.

18. Authorities of University.—The following shall be the authorities of the University, namely:—

(*1*) the Court;

(*2*) the Executive Council;

(*3*) the Academic Council;

(*4*) the Board of Affiliation and Recognition;

(*5*) the Boards of Schools;

(*6*) the Finance Committee; and

(*7*) such other authorities as may be declared by the Statutes to be the authorities of the University.

19. The Court.—(*1*) The constitution of the Court and the term of office of its members shall be prescribed by the Statutes:

Provided that such number of members, as may be prescribed by the Statutes, shall be elected from among the teachers, employees and students of the University.

(*2*) Subject to the provisions of this Act, the Court shall have the following powers and functions, namely:—

(*a*) to review, from time to time, the broad policies and programmes of the University and to suggest measures for the improvement and development of the University;

(*b*) to consider and pass resolutions on the annual report and the annual accounts of the University and the audit report on such accounts;

(*c*) to advise the Visitor in respect of any matter which may be referred to it for advice; and

(*d*) to perform such other functions as may be prescribed by the Statutes.

20. The Executive Council.—(*1*) The Executive Council shall be the principal executive body of the University:

Provided that until the first Executive Council is formed, the Steering Committee of the Ministry of Civil Aviation shall function as an interim Executive Council.

(*2*) The constitution of the Executive Council, the term of office of its members and its powers and functions shall be prescribed by the Statutes:

Provided that such number of members as may be prescribed by the Statutes shall be from among the elected members of the Court.

21. The Academic Council.—(*1*) The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act, the Statutes and the Ordinances, have the control and supervision over, and be responsible for, the maintenance of standards of instruction,

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education and examination within the University and shall exercise such other powers and perform such other duties as may be conferred or imposed upon it as may be prescribed by the Statutes.

(*2*) The Academic Council shall have the right to advise the Executive Council on all academic matters.

(*3*) The constitution of the Academic Council and the term of office of its members shall be such as may be prescribed by the Statutes.

22. The Board of Affiliation and Recognition.—(*1*) The Board of Affiliation and Recognition shall be responsible for admitting Colleges and Institutions to the privileges of the University.

(*2*) The constitution of the Board of Affiliation and Recognition, the term of office of its members and its powers and duties shall be such as may be prescribed by the Statutes.

23. The Boards of Schools.—(*1*) There shall be such number of Boards of Schools as the University may determine from time to time.

(*2*) The constitution, powers and functions of the Boards of Schools shall be such as may be prescribed by the Statutes.

24. The Finance Committee.—The constitution, powers and functions of the Finance Committee shall be prescribed by the Statutes.

25. Other authorities of University.—The constitution, powers and functions of other authorities, as may be declared by the Statutes to be the authorities of the University, shall be prescribed by the Statutes.

26. Power to make Statutes.—Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:—

(*a*) the constitution, powers and functions of authorities and other bodies of the University, as may be constituted from time to time;

(*b*) the election and continuance in office of the members of the said authorities and bodies, the filling up of vacancies of members, and all other matters relating to those authorities and other bodies for which it may be necessary or desirable to provide;

(*c*) the manner of appointment of the officers of the University, terms and conditions of service, their powers, emoluments and functions that may be exercised and performed by such authority;

(*d*) the manner of appointment of teachers, academic staff and other employees of the University, their emoluments and other conditions of service:

Provided that the terms and conditions of teachers, academic staff and other employees shall not be varied to their disadvantage;

(*e*) the manner of appointment of teachers and academic staff working in any other University or organisation for a specific period for undertaking a joint project, their terms and conditions of service and emoluments;

(*f*) the conditions of service of employees including provisions for pension, insurance and provident fund, the manner of termination of service and disciplinary action;

(*g*) the principles governing the seniority of service of the employees of the University;

(*h*) the procedure for arbitration in cases of dispute between employees or students of the University and the University;

(*i*) the procedure for appeal to the Executive Council by any employee or student against the action of any officer or authority of the University;

(*j*) the coordination and determination of standards in the University;

(*k*) the conferment of autonomous status on a College or an Institution or a Department;

(*l*) the establishment and abolition of schools, Departments, centres, Halls, Colleges and Institutions;

(*m*) the conferment of honorary degrees;

(*n*) the withdrawal of degrees, diplomas, certificates and other academic distinctions;

(o) the conditions under which Colleges and Institutions may be admitted to the privileges of the University and the withdrawal of such privileges;

(*p*) the Institution of fellowships, scholarships, studentships, assistantships, medals and prizes;

(*q*) the delegation of powers vested in the authorities or officers of the University;

(*r*) the maintenance of discipline among the employees and students; and

(*s*) all other matters which by this Act are to be or may be provided for by the Statutes.

27. Statutes how to be made.—(*1*) The first Statutes of the University shall be framed by the Steering Committee of the Ministry of Civil Aviation and the copy of the same shall be laid as soon as may be, after it is made, before each House of Parliament.

(*2*) Without prejudice to the provisions contained in sub-section (*1*), the Executive Council may, from time to time, make new or additional Statutes or may amend or repeal the Statutes in the manner hereafter in this section provided:

Provided that the Executive Council shall not make, amend or repeal any Statutes affecting the status, powers or constitution of any authority of the University until such authority has been given reasonable opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed shall be considered by the Executive Council.

(*3*) Every new Statute or addition to the Statutes or any amendment or repeal of a Statute shall require the assent of the Visitor, who may assent thereto or withhold assent or remit to the Executive Council for reconsideration in the light of the observation, if any, made by him.

(*4*) A new Statute or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented to by the Visitor.

(*5*) Notwithstanding anything contained in the foregoing sub-sections, the Visitor may make new or additional Statutes or amend or repeal the Statutes referred to in sub-section (*1*), during the period of three years immediately after the commencement of this Act:

Provided that the Visitor may, on the expiry of the said period of three years, make, within one year from the date of such expiry, such detailed Statutes as he may consider necessary and such detailed Statutes shall be laid before both Houses of Parliament.

(*6*) Notwithstanding anything contained in this section, the Visitor may direct the University to make provisions in the Statutes in respect of any matter specified by him and if the Executive Council is unable to implement such direction within sixty days of its receipt, the Visitor may, after considering the reasons, if any, communicated by the Executive Council for its inability to comply with such direction, make or amend the Statutes suitably.

28. Power to make Ordinances.—(*1*) Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely:—

(*a*) the admission of students to the University and their enrolment as such;

(*b*) the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(*c*) the medium of instruction and examination;

(*d*) the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(*e*) the fees to be charged for courses of study in the University and for admission to examinations, degrees and diplomas of the University;

(*f*) the conditions for award of fellowships, scholarships, studentships, assistantships, medals and prizes;

(*g*) the conduct of examinations, including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(*h*) the conditions of residence of the students of the University;

(*i*) the special arrangements, if any, which may be made for the residence, discipline and teaching of women students and the prescribing of special courses of studies for them;

(*j*) the appointment and emoluments of employees other than those for whom provision has been made in the Statutes;

(*k*) the establishment of Centre of Studies, Board of Studies, Special centre, Specialised Laboratories and other Committees;

(*l*) the manner of co-operation and collaboration with other Universities in India or abroad and authorities including learned bodies or associations;

(*m*) the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(*n*) such other terms and conditions of service of teachers and other academic staff as are not prescribed by the Statutes;

(o) the supervision and management of Colleges and Institutions admitted to the privileges of the University;

(*p*) the setting up of a machinery for redressal of grievances of employees; and

(*q*) all other matters which by this Act or the Statutes may be provided for by the Ordinances.

(*2*) The first Ordinances shall be made by the Vice-Chancellor with the previous approval of the Central Government and the Ordinances so made may be amended, repealed or added to at any time by the Executive Council in the manner prescribed by the Statutes.

29. Regulations.—The authorities of the University may make Regulations, consistent with this Act, the Statutes and the Ordinances in the manner prescribed by the Statutes, for the conduct of their own business and that of the Committees, if any, appointed by them and not provided for by this Act, the Statutes or the Ordinances.

30. Annual report.—(*1*) The annual report of the University shall be prepared under the direction of the Executive Council, which shall include, among other matters, the steps taken by the University towards the fulfilment of its objects and shall be submitted to the Court on or after such date as may be prescribed by the Statutes and the Court shall consider the report in its annual meeting.

(*2*) The Court shall submit the annual report to the Visitor along with its comments, if any.

(*3*) A copy of the annual report, as prepared under sub-section (*1*), shall also be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both Houses of Parliament.

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(*4*) A copy of the annual report shall also be exhibited on the website of the University after having been laid in both Houses of Parliament.

31.Annual accounts.—(*1*) The annual accounts and balance-sheet of the University shall be prepared under the directions of the Executive Council and shall, once at least every year and at intervals of not more than fifteen months, be audited by the Comptroller and Auditor-General of India or by such persons as he may authorise in this behalf.

(*2*) A copy of the annual accounts together with the audit report thereon shall be submitted to the Court along with the observations if any, of the Executive Council and the Court will submit the same to the Visitor along with its observation.

(*3*) Any observation made by the Visitor on the annual accounts shall be brought to the notice of the Court and the observations of the Court, if any, shall, after being considered by the Executive Council, be submitted to the Visitor.

(*4*) A copy of the annual accounts together with the audit report, as submitted to the Visitor, shall also be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both Houses of Parliament.

(*5*) The audited annual accounts after having been laid before both Houses of Parliament shall be published in the Gazette of India.

32. Returns and information.—The University shall furnish to the Central Government such returns or other information with respect to its property or activities as the Central Government may, from time to time, require, within such period as may be specified by the Central Government.

33. Conditions of service of employees.—(*1*) The University shall enter into written contract of service with every employee of the University appointed on regular basis or otherwise and the terms and conditions of the contract shall not be inconsistent with the provisions of this Act, the Statutes and the Ordinances.

(*2*) A copy of the contract referred to in sub-section (*1*) shall be kept with the University and a copy thereof shall also be furnished to the employee concerned.

34. Tribunal of Arbitration.—(*1*) Any dispute arising out of the contract between the University and any employee shall, at the request of the employee, be referred to a Tribunal of Arbitration consisting of one member appointed by the Executive Council, one member nominated by the employee concerned and an umpire appointed by the Visitor.

(*2*) The decision of the Tribunal of Arbitration shall be final and binding on the parties and no suit shall lie in any civil court in respect of the matters decided by the Tribunal:

Provided that nothing in this sub-section shall preclude the employee from availing of the judicial remedies available under articles 32 and 226 of the Constitution.

(*3*) Every request made by the employee under sub-section (*1*), shall be deemed to be a submission to arbitration upon the terms of this section within the meaning of the Arbitration and Conciliation Act, 1996 (26 of 1996).

(*4*) The procedure for regulating the work of the Tribunal shall be prescribed by the Statutes.

35. Procedure of appeal and arbitration in disciplinary cases against students.—(*1*) Any student or candidate for an examination whose name has been removed from the rolls of the University by the orders or resolution of the Vice-Chancellor, Disciplinary Committee or Examination Committee, as the case may be, and who has been debarred from appearing at the examinations of the University for more than one year, may, within ten days of the date of receipt of such orders or copy of such resolution by

him, appeal to the Executive Council and the Executive Council may confirm, modify or reverse the decision of the Vice-Chancellor or the Committee, as the case may be.

(*2*) Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to a Tribunal of Arbitration and the provisions of section 36 shall, as far as may be, apply to a reference made under this sub-section.

36. Right to appeal.—Every employee or student of the University, notwithstanding anything contained in this Act, have a right to appeal within such time as may be prescribed by the Statutes, to the Executive Council against the decision of any officer or authority of the University or of the Principal of any College or Institution, as the case may be, and thereupon the Executive Council may confirm, modify or reverse the decision appealed against.

37. Provident and pension fund.—(*1*) The University shall constitute for the benefit of its employees such provident or pension fund or provide such insurance schemes as it may deem fit in such manner and subject to such conditions as may be prescribed by the Statutes.

(*2*) Where such provident fund or pension fund has been so constituted, the Central Government may declare that the provision of the Provident Funds Act, 1925 (19 of 1925) shall apply to such fund, as if it were a Government provident fund.

38. Disputes as to constitution of University authorities and bodies.—If any question arises as to whether any person has been duly elected or appointed as, or is entitled to be, a member of any authority or other body of the University, the matter shall be referred to the Visitor whose decision thereon shall be final.

39. Constitution of Committees.—Where any authority of the University is given power by this Act or the Statutes to appoint Committees, such Committees shall, save as otherwise provided, consist of the members of the authority concerned and of such other person, if any, as the authority in each case may think fit.

40. Filling of casual vacancies.—All the casual vacancies among the members (other than *ex officio* members) of any authority or other body of the University shall be filled, as soon as may be convenient, by the person or body who appointed, elected or co-opted the members whose place has become vacant and the person appointed, elected or co-opted to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person of whose place he fills would have been a member.

41. Proceedings of University authorities or bodies not invalidated by vacancies.—No act or proceedings of any authority or other body of the University shall be invalid merely by reason of the existence of a vacancy or vacancies among its members.

42. Protection of action taken in good faith.—No suit or other legal proceedings shall lie against any officer or other employee of the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act, the Statutes or the Ordinances.

43. Mode of proof of University record.—A copy of any receipt, application, notice, order, proceedings resolution of any authority or Committee of the University, or other documents in possession of the University, or any entry in any register duly maintained by the University, if certified by the Registrar, shall be received as *prima facie* evidence of such receipt, application, notice, order, proceeding, resolution or documents or the existence of entry in the register and shall be admitted as evidence of the matters and transactions therein where the original thereof would, if produced, have been admissible in evidence, notwithstanding anything contained in the Indian Evidence Act, 1872 (1 of 1872) or in any other law for the time being in force.

44. Power of remove difficulties.—(*1*) If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions,

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not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of three years from the commencement of this Act.

(*2*) Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

45. Statutes, Ordinances and Regulations to be published in the Official Gazette and to be laid before Parliament.—(*1*) Every Statute, Ordinance or Regulation made under this Act shall be published in the Official Gazette and hosted on the website of the University.

(*2*) Every Statute, Ordinance or Regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute, Ordinance or Regulation or both Houses agree that the Statute, Ordinance or Regulation should not be made, the Statute, Ordinance or Regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute, Ordinance or Regulation.

(*3*) The power to make Statutes, Ordinances or Regulations shall include the power to give retrospective effect from a date not earlier than the date of commencement of this Act, to the Statutes, Ordinances or Regulations or any of them but no retrospective effect shall be given to any Statute, Ordinance or Regulation so as to prejudicially affect the interests of any person to whom such Statute, Ordinance or Regulation may be applicable.

46. Transitional provisions.—Notwithstanding anything contained in this Act and the Statutes,—

(*a*) the first Chancellor and the first Vice-Chancellor shall be appointed by the Visitor in such manner and on such conditions as may be deemed fit and each of the said officers shall hold office for such term, not exceeding five years, as may be specified by the Visitor;

(*b*) the first Registrar and the first Finance Officer shall be appointed by the Visitor on the recommendation of the Vice-Chancellor and each of the said officers shall hold office for a term of three years;

(*c*) the first Court and the first Executive Council shall consist of not more than ten members and ten members, respectively, who shall be nominated by the Visitor and shall hold office for a term of three years;

(*d*) the first Academic Council shall consist of not more members than Executive Council and they shall hold office for a term of three years:

Provided that any vacancy occurs in the above offices or authorities, the same shall be filled by appointment or nomination, as the case may be, by the Visitor, and the person so appointed or nominated shall hold office for so long as the officer or member in whose place he is appointed or nominated would have held that office, if such vacancy have not occurred.

47. Completion of courses of studies in Colleges or Institutions affiliated to University.—Notwithstanding anything contained in this Act, or in the Statutes or the Ordinances, any student of a College or an Institution, who, immediately before the admission of such College or Institution to the privileges of the University, was studying for a degree, diploma or certificate of any University constituted under any Act, shall be permitted by the University, to complete his course for that degree, diploma or certificate, as the case may be, and the University shall provide for the instructions and

examination of such student in accordance with the syllabus of studies of such College or Institution or University, as the case may be.

48. Role of Central Government.—(*1*) The University shall, in discharge of its functions under this Act, be bound by such directions on questions of policy as the Central Government may give in writing to it from time to time.

(*2*) The decision of the Central Government as to whether a question is one of policy or not shall be final.

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